

#	Case Name	Tentative
		Defendant shall provide notice of this ruling.
60.	Vazquez v. Volkswagen Group of America, Inc. 2025-01459449	Defendant Volkswagen Group of America, Inc. Motion for Summary Judgement or, in the alternative, Summary Adjudication of Issues is DENIED in its entirety. <u>Plaintiff's Evidentiary Objections to the Declaration of Laura C. Pratt</u> – Objection No. 1 is SUSTAINED. <u>Plaintiff's Evidentiary Objections to the Declaration of Brannndon Beauchamp</u> – Objection Nos. 1-3, 6-10 are OVERRULED. Objection Nos. 5 and 11 are SUSTAINED. <u>Defendant's Evidentiary Objections to the Declaration of Daniel Vazquez</u> – Objection Nos. 1-9 are OVERRULED. <u>Defendant's Evidentiary Objections to the Declaration of Donald Mahnke</u> – Objection Nos. 1-21, 44, 46-51 are SUSTAINED. Objections Nos. 22-43, 45 are OVERRULED. VW seeks summary judgment on all causes of action of Plaintiff Daniel Vazquez's Complaint on the grounds that it complied with the Song-Beverly Act by promptly offering to repurchase the Subject Vehicle. Promptly Repurchase or Replace To prevail on his Song-Beverly Consumer Warranty Act claims, Plaintiff must prove that (1) Plaintiff's vehicle had defects that affected the use, value, or safety of the vehicle that VW could not repair to conform to the applicable warranty after a reasonable number of repair attempts, and (2) assuming Plaintiff can prove it was not repaired after a reasonable number of attempts, VW did not promptly offer to repurchase or replace Plaintiff's vehicle. (Cal. Civ. Code § 1793.2 (d)(2); <i>Gonzalez v. Ford Motor Co.</i>, No. LACV1900652PAASX, 2019 WL 6122554, at *5 (C.D. Cal. Oct. 23, 2019).) Section 1793.2, subdivision (d)(2) sets forth the manufacturer's affirmative obligation to "promptly" repurchase or replace a defective vehicle it is unable to conform to the applicable express warranty. "There is no set timeframe for an offer to be 'prompt.' However, courts have found offers to be prompt where 40 to 50 days elapsed between the consumers' initial requests for repurchase/replacement and the manufacturers' offers." (<i>Carver v. Volkswagen Group of America, Inc.</i> (2024) 107 Cal.App.5th 864, 879-880.) VW contends that summary judgment is appropriate on the entire complaint because it promptly offered to repurchase the Subject Vehicle. On January 13, 2025, VW received

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		correspondence from Plaintiff expressing dissatisfaction regarding the Subject Vehicle. On February 14, 2025, VW requested certain documentation from Plaintiff after informing him that VW would be extending an offer to repurchase the Subject Vehicle. On March 20, 2025, VW sent a written repurchase offer to Plaintiff and Plaintiff's counsel. Thus, VW informed Plaintiff that it would extending an offer to repurchase the Subject Vehicle 32 days after Plaintiff expressed dissatisfaction with the Subject Vehicle, and sent Plaintiff a formal written repurchase offer 66 days after Plaintiff's initial communication was received by VW. VW argues it fulfilled its obligation to promptly repurchase the Subject Vehicle. In Opposition, Plaintiff argues a triable issue of material fact exists as to whether VW acted promptly in offering to repurchase the Subject Vehicle. "Whether a manufacturer willfully violated its obligation to repair the car or refund the purchase price is a factual question for the jury that will not be disturbed on appeal if supported by substantial evidence." (<i>Oregel v. American Isuzu Motors, Inc.</i> (2001) 90 Cal.App.4th 1094, 1104.) "[A] violation is not willful if the defendant's failure to replace or refund was the result of a good faith and reasonable belief the facts imposing the statutory obligation were not present. This might be the case, for example, if the manufacturer reasonably believed the product <i>did</i> conform to the warranty, or a reasonable number of repair attempts had not been made, or the buyer desired further repair rather than replacement or refund." (<i>Ibid.</i>) Here, Plaintiff argues VW ignored its request to repurchase or replace the Subject Vehicle, and did nothing to offer Plaintiff restitution until after the lawsuit was filed. The facts show that Plaintiff brought the Subject Vehicle to an authorized repair facility on November 3, 2022; February 25, 2023; March 10, 2023; and November 28, 2023, with complaints regarding the vehicle's electrical system. Due to persistent defects with the Subject Vehicle, on December 23, 2024, Plaintiff requested a "suitable remedy" from VW due to the unresolved issues with the vehicle. VW did not offer to repurchase the Subject Vehicle until March 20, 2025 – 87 days later. In this case, the court cannot conclude as a matter of law that VW acted promptly. VW did not offer to repurchase the Subject Vehicle for more than 50 days after receiving Plaintiff's notice, even assuming the pertinent window started on January 13, 2025, as urged by VW. Based on VW's cited

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		authorities and evidence presented, a triable issue of material fact exists as to whether VW “promptly” offered to repurchase Plaintiff’s vehicle. Accordingly, summary adjudication is DENIED as to the first and third causes of action. Breach of Implied Warranty Claim Plaintiff argues that his breach of implied warranty claim can survive even when a manufacturer offers to repurchase a vehicle because unlike an express warranty claim, a buyer raising implied warranty claims is not required to give the seller an opportunity to reimburse or replace the product at issue. (<i>De Leon v. Ford Motor Co.</i> (C.D. Cal. Nov. 13, 2019) No. CV187975PSGFFMX, 2019 WL 7195325, at *6.) The California Court of Appeal has noted that the Song-Beverly Act’s remedies for breach of express and implied warranties are not identical. (<i>Mocek v. Alfa Leisure, Inc.</i> (2003) 114 Cal.App.4th 402, 406.) While breach of express warranty claims require a consumer to provide the manufacturer with a reasonable opportunity to repair the vehicle, the same requirement does not apply to breach of an implied warranty of merchantability. (<i>Id.</i> at 407.) The remedy for a breach of implied warranty under the Act is restitution of the price paid. (See Civ. Code, §§ 1791(d) and 1794(b).) VW’s sole argument and separate statement regarding Plaintiff’s breach of implied warranty claim is premised upon a finding that it complied with the Song-Beverly Act by promptly offering to repurchase the Subject Vehicle. Because a triable issue of material fact exists as to that issue, summary judgment on the second cause of action for breach of implied warranty is also DENIED. Civil Penalty/Attorney Fees VW’s summary adjudication of the issue of civil penalties and attorneys’ fees is also premised upon a finding that VW complied with the Song-Beverly Act by offering to repurchase Plaintiff’s vehicle. Because the court finds a triable issue of material fact exists as to this issue, summary adjudication is DENIED as to Plaintiff’s claim for civil penalties or attorney fees. Moreover, “[i]f summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense,

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